

5. CU0001842

Charles Eugene Murdock v. Jodi Michelle Andrews

Defendant Donald Leslie Ringen's motion for stay of case pending conclusion of criminal case against Defendant Jodi Michelle Andrews is denied.

Legal Standard

Pursuant to Code of Civil Procedure § 128(a)(3), every court has the power to provide for the orderly conduct of proceedings, including the power to stay a civil action pending outcome of a related criminal case.

Courts recognize the dilemma faced by a Defendant who must choose between defending the civil litigation by providing testimony that may be incriminating on the one hand, and losing the case by asserting the constitutional right and remaining silent, on the other hand. At the same time, courts must also consider the interests of the Plaintiff in civil litigation where the Defendant is exposed to parallel criminal prosecution. Plaintiffs are entitled to an expeditious and fair resolution of their civil claims without being subjected to unwarranted surprise. Added to the mix, of course, is the interest of the Courts in fairly and expeditiously disposing of civil cases, and in efficiently utilizing judicial resources. Courts that are confronted with a civil Defendant who is exposed to criminal prosecution arising from the same facts weigh the parties' competing interests with a view toward accommodating the interests of both parties, if possible. One accommodation is to stay the civil proceeding until disposition of the related criminal prosecution. Another possibility is to... [preclude] a litigant who claims the constitutional privilege against self-incrimination in discovery from waiving the privilege and testifying at trial to matters upon which the privilege had been asserted.

Fuller v. Superior Court (2001) 87 Cal.App.4th 299, 305-307.

'There may be cases where the requirement that a criminal Defendant participate in a civil action, at peril of being denied some portion of his worldly goods, violates concepts of elementary fairness in view of the Defendant's position in an inter-related criminal prosecution. On the other hand, the fact that a man is indicted cannot give him a blank check to block all civil litigation on the same or related underlying subject matter. Justice is meted out in both civil and criminal litigation. The overall interest of the Courts that justice be done may very well require that the compensation and remedy due a civil Plaintiff should not be delayed (and possibly denied). The Court, in its sound discretion, must assess and balance the nature and substantiality of the injustices claimed on either side.' [Citation.]

People v. Coleman (1975) 13 Cal.3d 867, 885.

Under circumstances where the silence of a Defendant is "constitutionally guaranteed, the Court should weigh the parties' competing interests with a view toward accommodating the interests of both parties, if possible." *Pacers, Inc. v. Superior Court* (1984) 162 Cal.App.3d 686, 690. "While accommodation in this regard is sometimes made to a Defendant in a civil action, it

is done from the standpoint of fairness, not from any constitutional right. [Citation.] The self-incrimination privilege is not applicable to matters that will subject a witness to civil liability.” *Blackburn v. Superior Court* (1993) 21 Cal.App.4th 414, 425-426 fn. 11.

“[C]ourts are [also] guided by the strong principle that any elapsed time other than that reasonably required for pleadings and discovery ‘is unacceptable and should be eliminated.’ [Citation.] Courts must control the pace of litigation, reduce delay, and maintain a current docket so as to enable the just, expeditious, and efficient resolution of cases. [Citation.]” *Fuller, supra*, 87 Cal.App.4th at 306-307.

Analysis

This case arises from a rear-end collision on October 28, 2024. Defendant Andrews was operating a 2007 Toyota Tundra owned by Defendant Ringen when she allegedly struck the rear of Plaintiff Murdock’s vehicle. Andrews faces felony DUI charges in *People v. Andrews*, Nevada County Case No. CR0005948.

In support of his request for a complete stay, Defendant Ringen argues any responses Defendant Andrews provides to Plaintiff’s allegations in this action could implicate Defendant Andrews’ Fifth Amendment right against self-incrimination in the parallel criminal action and, as such, “Ringen is hamstrung in any effort to defend himself.” The Court is not persuaded.

The court notes that Defendant Andrews is not entitled to decide for herself whether the privilege against self-incrimination may be invoked.” *Fuller*, 87 Cal.App.4th at 305. “ ‘Rather, this question is for the Court to decide after conducting “*a particularized inquiry, deciding, in connection with each specific area that the questioning party seeks to explore*, whether or not the privilege is well-founded.” [Citation.]’ [Citation.]” *Warford v. Medeiros* (1984) 160 Cal.App.3d 1035, 1045 (original italics). “[A] blanket refusal to testify is unacceptable; a person claiming the Fifth Amendment privilege must do so with specific reference to particular questions asked or other evidence sought. [O]nce this is done, the trial Court must undertake a particularized inquiry with respect to each specific claim of privilege to determine whether the claimant has sustained his burden of establishing that the testimony or other evidence sought might tend to incriminate him.” *Warford*, 160 Cal.App.3d at 1045, fn. 8.

At bar, *Defendant Ringen*, not Defendant Andrews brought the instant motion. Defendant Andrews, not Defendant Ringen, holds the Fifth Amendment privilege. The motion to stay includes no information or reasoned argument showing the nature of any discovery propounded by Plaintiff on Defendants, which discovery requests in particular seek the disclosure of matters which may tend to incriminate Defendant Andrews, how Defendant Andrews will choose to address any such requests, and importantly, how any such requests would impact the interests of Defendant Ringen or impede his ability to defend himself.

The Court “must also consider the interests of the Plaintiff in civil litigation Plaintiffs are entitled to an expeditious and fair resolution of their civil claims without being subjected to unwarranted surprise. Among the myriad purposes of the civil discovery statutes is to safeguard against surprise and gamesmanship, and to prevent delay.” *Fuller, supra*, 87 Cal.App.4th at 306. Moreover, all parties, and the Court, have an interest resolving the claims alleged in this

civil litigation in an appropriate manner without unnecessary or unwarranted delay. Such is particularly true given the representations made by Plaintiff as to his age and health.

For these reasons, the motion to stay is denied. The parties remain free to file appropriate motions should they believe that discovery is improperly being propounded or withheld.

6. CU0002305 Jason Christ v. Jordan Hannah

Judge Tice-Raskin issued a tentative ruling prior to the March 6, 2026 hearing. It is restated, in relevant part, here.

Plaintiff's December 8, 2025, motion to strike the answer and cross-complaint is denied.

Defendant urges the Court to deny the motion because no supporting memorandum of points and authorities was filed by Plaintiff. The Court agrees.

Cal. Rules of Court, rule 3.113 "requires motions to be supported by memoranda containing 'a statement of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced,'" and provides that a motion's failure to provide such a memorandum can be construed "as an admission that the motion ... is not meritorious...." *Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal.App.4th 927, 931, *quoting* Rule 3.1113(b) & (a). "Rule 3.1113 rests on a policy-based allocation of resources, preventing the trial court from being cast as a tacit advocate for the moving party's theories by freeing it from any obligation to comb the record and the law for factual and legal support that a party has failed to identify or provide." *Id.* at 934.

Accordingly, the motion is denied.

7. CU0002304 Jason Christ v. Justis Barquilla

Judge Tice-Raskin issued a tentative ruling prior to the March 6, 2026 hearing. It is restated, in relevant part, here.

The December 5, 2025, motion of Defendant Nationstar Mortgage LLC and America West Lender Services LLC to strike Plaintiff's first amended complaint ("FAC") is granted. Plaintiff's complaint filed on August 7, 2025 shall proceed as the operative complaint in this matter.

Defendants assert Plaintiff's FAC was not filed in conformity with the laws of the state and should be stricken. The Court agrees.

"Ordinarily, an amended complaint may be filed without leave of court only before responsive pleadings are filed." *Woo v. Superior Court* (1999) 75 Cal.App.4th 169, 175, citing Code of Civ. Proc. § 472. "After the responsive pleadings are filed an amendment to a complaint ... requires leave of court." *Ibid.*, citing Code of Civ. Proc. § 473 (a).